

through her administrator, Octavia Holdman for an order granting Plaintiffs leave to file a first amended complaint is granted. Plaintiffs to file their pleading within 15 calendar days of this order.

4. 9:00 AM CASE NUMBER: C23-01843  
CASE NAME: ALI KHAN VS. X-THERMA INC.  
HEARING ON SUMMARY MOTION RE-SET PER EX PARTE ORDER FILED 2/26/2026  
FILED BY:

**\*TENTATIVE RULING:\***

Before the Court is Plaintiff Ali Khan ("Plaintiff" or "Khan")'s motion for summary adjudication. The motion relates to Plaintiff's Complaint for Breach of Contract as well as Defendant X-Therma, Inc. ("Defendant" or "X-Therma")'s Cross-Complaint for (1) constructive eviction, (2) breach of lease, (3) breach of implied covenant of good faith & fair dealing, (4) declaratory relief, (5) private nuisance, (6) premises liability, (7) unfair business practices in violation of Bus. & Prof. Code § 17200 et seq., (8) enforcement of unilateral rescission of the lease, (9) fraud (active concealment), and (10) negligent misrepresentation.

This motion previously came on for hearing on December 12, 2025 where the Court granted Plaintiff's unopposed motion for summary adjudication. Subsequently, however, X-Therma moved *ex parte* to vacate and set aside that order on the grounds that counsel mistakenly believed the motion had been taken off calendar pending completion of discovery and mediation. The instant motion was then reset for June 12, 2026 at 9:00a.m.

As a threshold issue, the motion purports to move "for an order of summary adjudication for all the causes of action stated in the Defendant's cross-complaint and all the affirmative defenses stated by Defendant to the cause of action for breach of contract stated in Plaintiff's complaint" as well as "an order of summary adjudication entered in favor of the Plaintiff's cause of action for Defendant's breach of contract[.]" (Notice at 1:23-28.)

"A party may move for summary judgment *in an action* or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding," or "a party may move for summary adjudication as to one or more causes of action *within an action*." (Code Civ. Proc., § 437c, subds. (a)(1) &

(f)(1), emphasis added.) These references to “an action” in the summary judgment statute are singular references. The word “action” is defined as “an ordinary proceeding in a court of justice by which one party prosecutes another [...]” (Code Civ. Proc., § 22, emphasis added.)

The Complaint and the Cross-Complaint are legally two separate actions.

“‘Where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. [Citations.]’ [Citation omitted.]” “Where a cross-complaint is filed there are two simultaneous actions pending between the parties wherein each is at the same time both a plaintiff and a defendant.” [Citation.]’ [Citations omitted.]” (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134.)

No authority, of which this Court is aware, permits a party to move for summary adjudication of causes of action in a complaint as well as summary adjudication of claims made in a cross-complaint in a single motion under Code of Civil Procedure section 437c.

X-Therma notes this issue in opposition but does not proffer any authority which would compel the Court to deny the motion on this basis. Furthermore, given that X-Therma was able to file a substantive opposition with respect to both the issues of the complaint and cross-complaint raised by the motion, the Court will address the motion on the merits.

For the following reasons, the motion is **granted**.

#### Request for Judicial Notice

Plaintiff requests judicial notice of X-Therma’s answer to his complaint and X-Therma’s Cross-Complaint against him. “Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, *but do not take judicial notice of the truth of the factual matters asserted in those documents.*” (*Glaski v. Bank of America* (2013) 218 Cal.App.4th 1079, 1090 [italics added].) Subject to that limitation, Plaintiff’s request is **granted**. (Evid. Code § 452(d).)

Defendant requests judicial notice of precipitation records from the National Oceanic and Atmospheric Administration (“NOAA”) for Richmond, CA from

February 2022 through November 2022. Defendant's request is **granted**. (Evid Code § 452(c).)

### Legal Standard

A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact ... ." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at 851.)

A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).)

However, "[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial." (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The Court notes that California law does not require a moving Plaintiff to negate a Defendant's affirmative defenses to satisfy its initial burden. (See *Aguilar, supra*, 25 Cal.4th at p. 853 ['summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action.... All that the plaintiff need do is to "prove[ ] each element of the cause of action" '].)

### Analysis

This case arises out of a commercial lease agreement between Plaintiff, owner

of an industrial real estate property in Richmond, and Defendant, a California corporation.

Plaintiff's Complaint for Breach of Contract

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

It is not materially disputed that the parties entered into a lease on February 18, 2023. Neither is it materially disputed that Defendant stopped payment under that lease agreement. The critical issue on this motion is whether Plaintiff or Defendant was in breach of a mold warranty provision of the lease such that Defendant was excused from performance (payment of rent).

The lease agreement states in part:

2.2. Condition. Lessor shall deliver that portion of the Premises contained within the Building (“Unit”) to Lessee broom clean and free of debris on the Commencement Date or the Early Possession Date, whichever first occurs (“Start Date”), and, so long as the required service contracts described in Paragraph 7.1(b) below are obtained by Lessee and in effect within thirty days following the Start Date, warrants that the existing electrical, plumbing, fire sprinkler, lighting, heating, ventilating and air conditioning systems (“HVAC”), loading doors, sump pumps, if any, and all other such elements in the Unit, other than those constructed by Lessee, shall be in good operating condition on said date, that the structural elements of the roof, bearing walls and foundation of the Unit shall be free of material defects, and that the Unit does not contain hazardous levels of any mold or fungi defined as toxic under applicable state or federal law. If a non-compliance with such warranty exists as of the Start Date, or if one of such systems or elements should malfunction or fail within the appropriate warranty period, Lessor shall, as Lessor’s sole obligation with respect to such matter, except as otherwise provided in this Lease, promptly after receipt of written notice from Lessee setting forth with specificity the nature and extent of such non-compliance, malfunction or failure, rectify same at Lessor’s expense. The

warranty periods shall be as follows: (i) 12 months as to the HVAC systems, and (ii) 30 days as to the remaining systems and other elements of the Unit. If Lessee does not give Lessor the required notice within the appropriate warranty period, correction of any such non-compliance, malfunction or failure shall be the obligation of Lessee at Lessee's sole cost and expense (except for the repairs to the fire sprinkler systems, roof, foundations, and/or bearing walls – see Paragraph 7.) Lessor also warrants, that unless otherwise specified in writing, Lessor is unaware of (i) any recorded Notices of Default affecting the Premise[s]; (ii) any delinquent amounts due under any loan secured by the Premises; and (iii) any bankruptcy proceeding affecting the Premises.

(See Complaint at Ex. A, ¶ 2.2.)

Plaintiff argues that pursuant to the above 30-day mold warranty, he was not liable under the lease for the subsequent discovery of mold in the Premises. It is not materially disputed that the earliest report of mold to Plaintiff was May 2023, outside this warranty period. (See, e.g., Odell Decl. at Ex. E [May 12, 2023 email reads in part “We identified, tested and confirmed black mold in the existing facility.”].)

Instead, Defendant argues in opposition that the terms of the lease itself “creates a triable issue regarding whether mold existed prior to possession, whether the condition breached Plaintiff's warranty, and whether Plaintiff's breach preceded any alleged breach by Defendant.” (Opp. at § IV(A).)

Defendant misapprehends the shifting burden on summary judgment. Plaintiff adduced evidence that there was no mold in or on the Premises prior to execution of the lease. (Khan Decl. at 2:10-12.) Having met his burden, the burden then shifts to Defendant to adduce evidence that there was mold in the subject Premises prior to the expiration of the mold warranty period under the Lease. Defendant argues, without evidence, that leaks prior to their tenancy “facilitated the growth of toxic molds at the property.” (Opp. at § IV(A).) This is insufficient to meet their burden.

Therefore, the Court will **grant** the motion as Plaintiff's cause of action for breach of contract.

#### Defendant's Cross-Complaint

As to each claim as framed by the cross-complaint, the cross-defendant moving

for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519–1520.) Once the cross-defendant has met that burden, the burden shifts to the cross-complainant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.)

(1) constructive eviction

The necessary elements for constructive eviction are: (1) a landlord's acts/omissions or disturbance/interference with her tenants' possession of leased premises; and (2) that said landlord's conduct caused either a substantial portion of the premises to be unfit for the purposes for which it was leased or the tenants to be deprived of the beneficial enjoyment or use of the premises for a substantial time. (*Groh v. Kover's Bull Pen, Inc.* (1963) 221 Cal.App.2d 611, 614.)

The Cross-Complaint alleges that “[t]he Property was and remains in a hazardous condition due to the presence of excessive levels of black mold, which interfered with X-Therma and its employees from safely occupying and conducting its business as a regulated FDA manufacturer at the Premises for operation of a laboratory.” (XC at ¶ 28.)

However, the undisputed evidence demonstrates that Defendant did not report the presence of mold until after the expiration of the 30-day mold warranty period.

Under paragraph 7.1 of the lease, the Defendant became responsible for the remediation of mold or fungi on the premises thirty days after commencement of the lease. (Complaint at Ex. A, ¶ 7.1.) As a consequence, the presence of black mold cannot support Defendant's cause of action for constructive eviction.

Plaintiff is entitled to summary adjudication of Defendant's constructive eviction claim.

(2) breach of lease

Cross-Complainant's breach of lease claim is based on the same contract as is Plaintiff's breach of contract claim. The Cross-Complaint alleges that “Khan

breached the Lease Agreement, by failing to deliver the Premises in a reasonably safe condition, free of hazardous levels of toxic black mold and fungi and other defective conditions.” (XC at ¶ 33.)

For the same reasons as discussed supra, Plaintiff is entitled to summary adjudication of Defendant’s breach of lease claim.

(3) breach of implied covenant of good faith & fair dealing

To prevail on a claim for breach of the implied covenant of good faith and fair dealing, the Cross-Complainant must first establish “the existence of a contractual relationship between the parties, since the covenant is an implied term in the contract.” (*Smith v. City and County of San Francisco* (1990) 225 Cal.App.3d 38, 49.) Secondly, benefits due under the contract must have been withheld, and “the reason for withholding benefits must have been unreasonable or without proper cause” (*Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136, 1151.) Under traditional contract principles, the implied covenant of good faith is read into contracts “in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract’s purpose.” (*Carma Developers (Cal.), Inc. v. Marathon Development California, Inc.* (1992) 2 Cal.4th 342, 373.)

The Cross-Complaint alleges that “Khan breached this covenant by engaging in acts complained of in this Cross-Complaint and failing and continuing to fail to remediate the issues, including but not limited to the black mold.” (XC at ¶ 39.) However, Plaintiff has adduced evidence that he had no reason to believe that black mold ever existed in or on the Premises before May 12, 2023 (Khan Decl. at 2:10-12) and that pursuant to the lease, Defendant became solely responsible for the remediation of mold or fungi on the premises thirty days after commencement of the lease. (Complaint at Ex. A, ¶ 7.1.)

Plaintiff is entitled to summary adjudication of Defendant’s breach of implied covenant claim.

(4) declaratory relief

California Courts have recognized that “[t]he existence of an ‘actual controversy relating to the legal rights and duties of the respective parties,’ suffices to maintain an action for declaratory relief.” (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605.) “Any person interested under a written instrument,... or under a contract, or who desires a declaration of his or her

rights or duties with respect to another, or in respect to, in, over or upon property, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (*Id.* [quoting Code Civ. Proc, § 1060].)

As discussed *infra*, the Court grants Plaintiff's motion with respect to all of the causes of action of the Cross-Complaint. Thus, an actual controversy sufficient to sustain a declaratory judgment cause of action does not exist.

Plaintiff is entitled to summary adjudication of Defendant's declaratory relief claim.

(5) private nuisance

Section 731 of the Code of Civil Procedure governs who may bring an action for nuisance. It provides: "An action may be brought by any person whose property is injuriously affected, or whose personal enjoyment is lessened by a nuisance, as defined in Section 3479 of the Civil Code, and by the judgment in that action the nuisance may be enjoined or abated as well as damages recovered therefor." (Code Civ. Proc., § 731.)

Here, Defendant's private nuisance claim is premised on the presence of black mold at the property. However, as the undisputed material facts establish, Defendant did not report the presence of mold until after the expiration of the 30-day mold warranty period, and that under the lease Defendant was solely responsible for remediating the presence of black mold. (Odell Decl. at Ex. E [May 12, 2023 email]; Complaint at Ex. A, ¶¶ 2.2, 7.1.)

As a consequence, Plaintiff is entitled to summary adjudication of Defendant's private nuisance claim.

(6) premises liability

For the same reasons as discussed with respect to Defendant's private nuisance claim, Plaintiff is entitled to summary adjudication of Defendant's premises liability claim, which is also premised on the presence of black mold.

(7) unfair business practices in violation of Bus. & Prof. Code § 17200 et seq.

Plaintiff moves for summary adjudication of Defendant's 17200 claim on the



grounds that Defendant does not spell out the elements of the business tort for the “borrowed” action in his UCL claim.

“[S]ection 17200 ‘borrows’ violations of other laws and treats them as unlawful practices” that the unfair competition law makes independently actionable. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.)

As pled, Defendant’s Cross-Complaint is unclear as to the predicate violation upon which it relies for its 17200 claim. It alleges only “[t]he various breaches of duty committed by Khan as described herein constitute unlawful, unfair, and/or fraudulent business practices in violation of the UCL.” (XC at ¶ 63.) Even assuming arguendo that Defendant’s causes of action for breach of contract or fraud are intended to serve as a predicate for the 17200 claim, Plaintiff has established that he is entitled to summary adjudication on those claims, as discussed herein.

Plaintiff is entitled to summary adjudication of Defendant’s 17200 claim.

(8) enforcement of unilateral rescission of the lease

Plaintiff moves for summary adjudication of Defendant’s cause of action for rescission on the same grounds as breach of lease. Because the Court has already determined that Plaintiff performed under the contract, Defendant cannot establish a cause of action for rescission. Plaintiff is entitled to summary adjudication on Defendant’s cause of action for rescission.

(9) fraud (active concealment)

Plaintiff moves for summary adjudication on Defendant’s cause of action for fraud on the grounds that it lacks the requisite specificity.

The elements of a fraudulent concealment cause of action are: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4 858, 868.)

Defendant’s Cross-Complaint alleges that (1) “Khan concealed the fact that the

Property had black mold in it” (XC at ¶ 71); (2) that “[t]he existence of the black mold at the Property was known by Kahn because he was obligated by a commercial landowner to inspect the Property before the Lease was executed to make the premises reasonably safe from dangerous conditions” (XC at ¶ 72); (3, 4) that “at the time X-Therma executed the Lease, Khan concealed this information with the intent that X-Therma rely ignorant of the true facts” (XC at ¶ 74); and (5) that “X-Therma has been damaged in an amount exceeding \$700,000, which amount will be proven at trial.” (XC at ¶ 75.)

Plaintiff argues these allegations are insufficient to state a cause of action for concealment; both Plaintiff’s intent and Defendant’s reliance are inadequately alleged. Defendant does not address this argument in opposition, conceding the merit of Plaintiff’s argument. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal. App. 4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue.”]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal. App. 4th 507, 529 [“[F]ailure to address the threshold question . . . effectively concedes that issue and renders its remaining arguments moot.”].)

Plaintiff is entitled to summary adjudication on Defendant’s claim for fraud (active concealment).

(10) negligent misrepresentation

Plaintiff also moves for summary adjudication on Defendant’s claim for negligent misrepresentation on the grounds that it lacks the requisite specificity.

The elements of negligent misrepresentation are “(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.” (*Apollo Capital Fund LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.) While there is some conflict in the case law discussing the precise degree of particularity required in the pleading of a claim for negligent misrepresentation, there is a consensus that the causal elements, particularly the allegations of reliance, must be specifically pleaded. (*E.g., Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184; *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519.)

Defendant's Cross-Complaint alleges that (1) Khan represented to X-Therma that the Property contained no black mold issues (XC at ¶ 78); (2) those representations were false, Khan should have known they were false, and had no reasonable grounds for believing them to be true when made (XC at ¶ 80); (3) that Khan intended that X-Therma rely on his representations (XC at ¶ 81); (4) that Khan's misrepresentations were a substantial factor in X-Therma's decision to enter the Lease with Khan (XC at ¶ 83); and (5) that as a direct and proximate result of the conduct and actions committed by Khan, X-Therma has been damaged in an amount exceeding \$700,000 (XC at ¶ 84).

Plaintiff argues that Defendant did not plead with any particularity how Plaintiff knew or should have known of a mold problem on the Premises and how he concealed this from Defendant. The Court agrees. The allegations of the Cross-Complaint are cursory at best. And as with Defendant's cross-claim for fraud, they do not address this argument or cause of action in opposition, effectively conceding the merit of Plaintiff's argument.

Plaintiff is entitled to summary adjudication on Defendant's negligent misrepresentation claim.

### **Objections to Evidence**

California Rules of Court Rule 3.1354(b) dictates the format in which evidentiary objections must be submitted: "All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections on specific evidence may be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement." In opposition, Defendant argues that "the Declaration of Plaintiff Ali Khan fails [to] comply with the evidentiary standards necessary to support the present Motion and is largely, if not entirely based on hearsay, improper lay and expert opinion, legal conclusions, and statements lacking foundation." (Opp. at § III.) This objection fails to comply with Rule of Court 3.1354(b).

The Court **denies** this objection based on its procedural deficiency. (See *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 9 [trial court did not abuse discretion in denying objections that were not filed separately].)

For the same reasons, Plaintiff's objection in its reply regarding X-Therma's

opposing evidence is also **denied**.

5. 9:00 AM CASE NUMBER: C23-02335  
CASE NAME: KROPP V SRVUSD  
HEARING ON SUMMARY MOTION  
FILED BY: SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT  
**\*TENTATIVE RULING:\***

San Ramon Valley High School ("SRVHS") and San Ramon Valley Unified School District ("District," or collectively, "District Defendants"), move for summary judgment on plaintiff's Second Amended Complaint ("SAC"); or, in the alternative, summary adjudication as to each cause of action raised against them. The motion for summary judgment is **granted**, as discussed below. District Defendants shall prepare an appropriate form of judgment, separate from any order on this motion, and circulate for approval as to form.

#### **I. Background**

Plaintiff, Spencer Kropp, alleges that he was a fifteen-year-old member of the JV football team who incurred injuries on August 18, 2022, around 5pm, when he fell off the bumper of another football player's truck in the school parking lot after practice. (SAC, ¶¶11-13, 23-25.)

Plaintiff had been loading his gear into the truck driven by defendant Andrew Nicholson, when Nicholson accelerated prior to plaintiff moving away from the vehicle, causing plaintiff to fall face first and sustain head injuries. (SAC, ¶¶23-25.) The coaches had already departed the school on their way to a nearby pizzeria for a team dinner following practice. (See SAC, ¶97.) The dinner was a weekly activity after practice that was "team-sponsored" and "school-sanctioned." (SAC, ¶¶11.) Typically, some players would walk to the restaurant after loading their gear into other players' vehicles, while other players were transported by their peers, such as Andrew Nicholson, who owned vehicles. (SAC, ¶24.)

The SAC alleges plaintiff told his coaches about his injury upon arriving at the pizzeria, but they ignored plaintiff and his objective indications of head injury (cuts, scrapes, bruising, and swelling). (SAC, ¶77.) The coaches failed to prevent him from participating in a scrimmage the following day, and in a practice the day after the scrimmage. (SAC, ¶¶77-79.) The coaches failed to